

1 ENGROSSED SENATE
2 BILL NO. 1921

By: Murdock of the Senate

3 and

4 Manger of the House

5
6 An Act relating to the Oklahoma State Bureau of
7 Investigation; amending 74 O.S. 2021, Section 150.9,
8 as amended by Section 583, Chapter 486, O.S.L. 2025
9 (74 O.S. Supp. 2025, Section 150.9), which relates to
10 criminal history records; removing obsolete language;
11 providing time frame for completion of certain record
12 checks; amending fee schedule for certain records;
13 updating statutory language; updating statutory
14 reference; and providing an effective date.

15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 74 O.S. 2021, Section 150.9, as
17 amended by Section 583, Chapter 486, O.S.L. 2025 (74 O.S. Supp.
18 2025, Section 150.9), is amended to read as follows:

19 Section 150.9. A. The Oklahoma State Bureau of Investigation
20 shall procure, file, and maintain criminal history records for each
21 person subject to mandatory reporting as provided by law, including
22 photographs, descriptions, fingerprints, measurements, and other
23 pertinent information relating to such persons. It shall be the
24 duty of law enforcement officers and agencies, sheriffs, police,
courts, judicial officials, district attorneys, and the persons in
charge of any state correctional facility or institution to furnish

1 criminal history records to the Bureau as required by Section 150.1
2 et seq. of this title. The Oklahoma State Bureau of Investigation
3 shall cooperate with and assist the sheriffs, chiefs of police, and
4 other law enforcement officers of the state by maintaining a
5 complete criminal history record on each person subject to mandatory
6 reporting as provided by law, and shall have on file the fingerprint
7 impressions of all such persons together with other pertinent
8 information as may from time to time be received from the law
9 enforcement officers of this and other states or as may be required
10 by law.

11 B. 1. The Oklahoma State Bureau of Investigation is authorized
12 to conduct and receive results of national criminal history record
13 checks for authorized purposes pursuant to ~~Public Law~~ P.L. No. 92-
14 544, the National Child Protection Act/Volunteers for Children Act
15 (NCPA/VCA) as amended, with or without a Volunteer and Employee
16 Criminal History System (VECHS) waiver program or any other federal
17 authorizing statute. The Oklahoma State Bureau of Investigation
18 shall only release the results of national criminal history record
19 checks to entities authorized to receive the results pursuant to
20 federal law.

21 2. Any state agency, board, department, or commission or any
22 other person or entity authorized to request a national criminal
23 history record ~~or an analysis of fingerprints~~ check for commercial,
24 licensing, or other purposes, except law enforcement purposes, shall

1 conduct a national criminal history ~~records~~ record check on all
2 persons of the entity authorized to access or review national
3 criminal history records checks information ~~by July 1, 2009, and~~
4 ~~within sixty (60) days thereafter.~~ National criminal history record
5 checks conducted for access and review purposes shall be completed
6 prior to the individual receiving and reviewing national criminal
7 history record information and may be conducted up to thirty (30)
8 days before the effective date of the entity's authorization to
9 conduct national criminal history record checks.

10 3. Each agency, person, or entity authorized to request a
11 criminal history record or an analysis of fingerprints shall pay a
12 fee to the Bureau for each criminal history record or fingerprint
13 analysis as follows:

Oklahoma criminal history record only	\$15.00 <u>\$20.00</u> each
Oklahoma criminal history record with fingerprint analysis	\$19.00 <u>\$25.00</u> each
National criminal history record with fingerprint analysis <u>submitted</u> <u>electronically</u>	\$41.00 each
<u>National criminal history record with</u> <u>fingerprint analysis by mail</u>	<u>\$55.00 each</u>

22 4. For purposes of this section, "a national criminal history
23 record check" means a check of criminal history records entailing
24 the fingerprinting of the individual and submission of the

1 fingerprints to the United States Federal Bureau of Investigation
2 (FBI) for the purpose of obtaining the national criminal history
3 record of the person from the FBI. A national criminal history
4 record check may be obtained only when a check is authorized or
5 required by state or federal law.

6 Agencies authorized by statute to conduct national criminal
7 history background checks for individuals are eligible to
8 participate in the Federal Rap Back Program administered by the
9 Oklahoma State Bureau of Investigation. The Oklahoma State Bureau
10 of Investigation is authorized to submit fingerprints to the FBI Rap
11 Back System to be retained in the FBI Rap Back System for the
12 purpose of being searched by future submissions to the FBI Rap Back
13 System, including latent fingerprint searches, and to collect all
14 Federal Rap Back Program fees from eligible agencies wishing to
15 participate and remit such fees to the ~~Federal Bureau of~~
16 ~~Investigation~~ FBI.

17 5. Unless a national criminal history record is specifically
18 requested, a fingerprint analysis shall be limited to only those
19 records available at the Oklahoma State Bureau of Investigation.
20 Following receipt of the appropriate fee, the Bureau shall provide,
21 as soon as possible, the criminal history record requested;
22 provided, however, it shall be the duty and responsibility of the
23 requesting authority to evaluate the criminal history record as such
24 record may apply to a specific purpose or intent. An individual may

1 submit a certified court record showing that a charge was dismissed
2 or a certified copy of a gubernatorial pardon to the Oklahoma State
3 Bureau of Investigation, and upon verification of that record, the
4 Bureau records shall reflect the dismissal of that charge.

5 C. The Oklahoma State Bureau of Investigation may maintain an
6 identification file, including fingerprint impressions, on any
7 person under eighteen (18) years of age who is arrested or subject
8 to criminal or juvenile delinquency proceedings, provided all such
9 information shall be confidential and shall only be made available
10 to the Bureau and other law enforcement agencies. Whenever a
11 fingerprint impression or other identification information is
12 submitted to the Bureau on a person under eighteen (18) years of
13 age, the Bureau may retain and file such fingerprint and
14 identification information for identification purposes only. The
15 Bureau shall ensure that the information received and maintained for
16 identification purposes on persons under eighteen (18) years of age
17 shall be handled and processed with great care to keep such
18 information confidential from the general public. The Bureau may
19 receive and maintain the fingerprints and other identification
20 information on any person under eighteen (18) years of age believed
21 to be the subject of a runaway, missing, or abduction investigation,
22 for identification purposes at the request of a parent, guardian, or
23 legal custodian of the person.

1 D. Any person who knowingly procures, utters, or offers any
2 false, forged, or materially altered criminal history record shall
3 be guilty of a Class D1 felony offense and upon conviction shall be
4 punished by imprisonment as provided for in subsections B through F
5 of Section 20N of Title 21 of the Oklahoma Statutes, or by a fine
6 not to exceed Five Thousand Dollars (\$5,000.00), or by both such
7 ~~fine and imprisonment~~ and fine.

8 SECTION 2. This act shall become effective November 1, 2026.

9 Passed the Senate the 17th day of March, 2026.

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11 _____
12 Presiding Officer of the Senate

13 Passed the House of Representatives the ____ day of _____,
14 2026.

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17 Presiding Officer of the House
18 of Representatives
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